

UNITED STATES DISTRICT COURT  
SOUTHERN DISTRICT OF NEW YORK

-----X  
ZHI CHEN,

Plaintiff,

-against-

**COMPLAINT**

**09 CV 5830**

**JURY TRIAL DEMANDED**

**ECF CASE**

THE CITY OF NEW YORK and P.O. NATHAN CAVADA,  
Shield # 20077, Individually and in his Official Capacity and  
P.O.s "JOHN DOE" #1-10, Individually and in their Official  
Capacities, (the name John Doe being fictitious, as the true names  
are presently unknown),

Defendants.  
-----X

Plaintiff, ZHI CHEN, by his attorneys, Cohen & Fitch LLP, complaining of the defendants,  
respectfully alleges as follows:

**PRELIMINARY STATEMENT**

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

**JURISDICTION**

2. This action is brought pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is founded upon 28 U.S.C. §§ 1331, 1343 and 1367.

**VENUE**

4. Venue is properly laid in the Southern District of New York under 28 U.S.C.

§ 1391(b), in that this is the District in which the claim arose.

**JURY DEMAND**

5. Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38(b).

**PARTIES**

6. Plaintiff is a Chinese American male and was at all relevant times a resident of the City of Harrison, in the State of New Jersey.

7. Defendant, the City of New York, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

8. Defendant, the City of New York, maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, the City of New York.

9. At all times hereinafter mentioned, the individually named defendant P.O. NATHAN CAVADA, Shield 20077, and the defendants P.O.s "JOHN DOE" #1-10 were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

10. At all times hereinafter mentioned, the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

11. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant, City of New York.

12. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant, City of New York.

**FACTS**

13. On or about April 10, 2008, at approximately 5:15 p.m., plaintiff ZHI CHEN was lawfully present on the 4 train in the vicinity of Grand Central Station, in the County, City and State of New York.

14. Immediately after exiting the crowded train, plaintiff ZHI CHEN was accosted by two plain-clothed men who later identified themselves as members of the New York City Police Department.

15. Plaintiff then requested that defendants confirm that they were police officers and asked them to provide him with an explanation as to why they stopped him.

16. In response to plaintiff's numerous requests, defendant police officers immediately forced plaintiff to the ground and handcuffed him.

17. Shortly thereafter, plaintiff overheard defendant police officers accuse plaintiff of harassing a woman on the train.

18. The aforementioned woman approached the officers and informed them that plaintiff did not touch her.

19. Defendant officers ignored the female passenger's testimony and demanded that she leave the scene, despite plaintiff's requests that she remain as a witness.

20. Thereafter, plaintiff was kept in police custody at the subway station for approximately 30 minutes.

21. Notwithstanding the lack of any evidence of criminal activity, or a complaining victim, defendant officers arrested plaintiff ZHI CHEN and charged him with Forcible Touching,

Resisting Arrest, and Sexual Abuse in the Third Degree.

22. At no time did plaintiff forcibly touch or sexually abuse anyone, nor did he resist arrest.

23. Defendant officers then transported plaintiff to a police precinct where he was processed and held for approximately 5 hours.

24. Plaintiff was then transferred to Central Booking where he became ill and sought medical attention.

25. Defendant officer attempted to discourage plaintiff from going to the hospital, but when he insisted on receiving treatment, defendant tightly handcuffed plaintiff's wrists and ankles and threatened to keep plaintiff incarcerated over the weekend.

26. After his condition worsened, plaintiff was eventually taken to Bellevue Hospital and received medical treatment.

27. As a result of his unlawful arrest, plaintiff ZHI CHEN spent approximately twenty-four (24) hours in police custody.

28. In connection with this arrest, defendants filled out false and misleading police reports and forwarded these reports to prosecutors in the District Attorney's Office.

29. Thereafter, defendants repeatedly gave false and misleading testimony regarding the facts and circumstances of plaintiff's arrest.

30. As a result of his unlawful arrest plaintiff ZHI CHEN missed five (5) days of work and made numerous court appearances.

31. On or about March 4, 2009 all charges against plaintiff ZHI CHEN were dismissed.

32. As a result of the foregoing, plaintiff ZHI CHEN sustained, *inter alia*, loss of liberty, emotional distress, mental anguish, shock, fright, apprehension, embarrassment and humiliation, and

deprivation of his constitutional rights.

**FIRST CLAIM FOR RELIEF**  
**DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. § 1983**

33. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "32" with the same force and effect as if fully set forth herein.

34. All of the aforementioned acts of defendants, their agents, servants and employees were carried out under the color of law.

35. All of the aforementioned acts deprived plaintiff ZHI CHEN of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §1983.

36. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with all the actual and/or apparent authority attendant thereto.

37. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

38. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of his/her respective municipality/authority, which is forbidden by the Constitution of the United States.

39. As a result of the foregoing, plaintiff ZHI CHEN sustained, *inter alia*, loss of liberty, emotional distress, mental anguish, shock, fright, apprehension, embarrassment and humiliation, and deprivation of his constitutional rights.

**SECOND CLAIM FOR RELIEF**

**FALSE ARREST UNDER 42 U.S.C. § 1983**

40. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "39" with the same force and effect as if fully set forth herein.

41. As a result of defendants' aforementioned conduct, plaintiff ZHI CHEN was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings, without any probable cause, privilege or consent.

42. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, and he was put in fear for his safety, was humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

**THIRD CLAIM FOR RELIEF**  
**VIOLATION OF FIRST AMENDMENT RIGHTS UNDER 42 U.S.C. § 1983**

43. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "42" with the same force and effect as if fully set forth herein.

44. Plaintiff's unjustified arrest and detention was not authorized by law but rather was the defendant officers' response to plaintiff's verbal request.

45. Plaintiff's verbal request is speech that is entirely protected under the First and Fourteenth Amendment of the Constitution of the United States.

46. Defendants conduct was in direct violation of plaintiff's right to freedom of speech as secured by the First and Fourteenth Amendments.

47. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, and he was put in fear for his safety, was humiliated and subjected to handcuffing, and other physical restraints.

**FOURTH CLAIM FOR RELIEF**

**MALICIOUS ABUSE OF PROCESS UNDER 42 U.S.C. § 1983**

48. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "47" with the same force and effect as if fully set forth herein.

49. Defendants issued legal process to place plaintiff ZHI CHEN under arrest.

50. Defendants arrested plaintiff in order to obtain a collateral objective outside the legitimate ends of the legal process.

51. Defendants acted with intent to do harm to plaintiff ZHI CHEN, without excuse or justification.

52. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, and he was put in fear for his safety, was humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

**FIFTH CLAIM FOR RELIEF**  
**MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

53. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "52" with the same force and effect as if fully set forth herein.

54. Defendants misrepresented and falsified evidence before the District Attorney.

55. Defendants did not make a complete and full statement of facts to the District Attorney.

56. Defendants withheld exculpatory evidence from the District Attorney.

57. Defendants were directly and actively involved in the initiation of criminal proceedings against ZHI CHEN.

58. Defendants lacked probable cause to initiate criminal proceedings against ZHI CHEN.

59. Defendants acted with malice in initiating criminal proceedings against ZHI CHEN.

60. Defendants were directly and actively involved in the continuation of criminal proceedings against ZHI CHEN.

61. Defendants lacked probable cause to continue criminal proceedings against ZHI CHEN.

62. Defendants acted with malice in continuing criminal proceedings against ZHI CHEN.

63. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

64. Notwithstanding the perjurious and fraudulent conduct of defendants, the criminal proceedings were terminated in ZHI CHEN'S favor on or about March 4, 2009 when all charges against them were dismissed.

65. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, and he was put in fear for his safety, was humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

**SIXTH CLAIM FOR RELIEF  
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL  
UNDER 42 U.S.C. § 1983**

66. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "65" as if the same were more fully set forth at length herein.

67. Defendants created false evidence against plaintiff ZHI CHEN.

68. Defendants forwarded false evidence and false information to prosecutors in the District Attorney's office.

69. Defendants misled the prosecutors by creating false evidence against plaintiff ZHI CHEN and thereafter providing false testimony throughout the criminal proceedings.

70. In creating false evidence against plaintiff ZHI CHEN, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn



statements, defendants violated plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

71. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, and he was put in fear for his safety and he was humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

**SEVENTH CLAIM FOR RELIEF**  
**EXCESSIVE FORCE UNDER 42 U.S.C. § 1983**

72. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "71" with the same force and effect as if fully set forth herein.

73. The level of force employed by defendants was objectively unreasonable and in violation of the constitutional rights of the plaintiff.

74. As a result of the aforementioned conduct of defendants, plaintiff was subjected to excessive force and sustained physical and emotional injuries.

**EIGHTH CLAIM FOR RELIEF**  
**MUNICIPAL LIABILITY**

75. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "74" with the same force and effect as if fully set forth herein.

76. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

77. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to, a) arresting individuals regardless of probable cause, and b) arresting individuals and charging them for exercising their right to free speech, and c) falsifying evidence to cover up police misconduct.

78. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiff.

79. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

80. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

81. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff ZHI CHEN was subjected to unlawful and excessive force resulting in severe injuries.

82. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiff's constitutional rights.

83. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of plaintiff ZHI CHEN's constitutional rights

84. The acts complained of deprived plaintiff of their rights:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. To be free from malicious abuse of process;
- D. To be free from unlawful search;
- E. Not to be deprived of their freedom of speech;
- F. Not to have summary punishment imposed upon them; and

G. To receive equal protection under the law.

85. As a result of the foregoing, plaintiff ZHI CHEN is entitled to compensatory damages in the sum of one million dollars (\$1,000,000.00) and is further entitled to punitive damages against the individual defendants in the sum of one million dollars (\$1,000,000.00).

**WHEREFORE**, plaintiff ZHI CHEN demands judgment in the sum of one million dollars (\$1,000,000.00) in compensatory damages, one million dollars (\$1,000,000.00) in punitive damages, plus attorney's fees, costs, and disbursements of this action.

Dated: New York, New York  
June 24, 2009

BY: \_\_\_\_\_/S  
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